TREE CANOPY PRESERVATION POLICY

For Trees Located on Private Property

In 2023, the City of Evanston passed Ordinance 50-O-23, which created the Tree Canopy Preservation Policy. This Policy contains:

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TREE PRESERVATION PERMITS – PRIVATE PROPERTY

CONSTRUCTION ACTIVITIES EXEMPT FROM TREE PRESERVATION PERMIT REQUIREMENTS

- AC REPLACEMENT EXISTING LOCATION
- CCCD
- CONDO CONVERSION
- FENCE (unless tree removal is required)
- FIRE ALARM
- FIRE HOOD SUPPRESSION
- FIRE SUPPRESSION
- HVAC ONLY
- LOW VOLTAGE ALARM
- MISCELLANEOUS SITE WORK – ANTENNA
- MISCELLANEOUS SITE WORK – ELEVATOR
- REMODEL - INTERIOR COMMERCIAL
- REMODEL - KITCHEN AND/OR BATH
- TEMPORARY - TENT OR STRUCTURE
- INTERIOR DRAIN TILE
- PLUMBING (internal only)
- DEMOLITION – INTERIOR
- REMODEL – INTERIOR ADU
- REMODEL – INTERIOR RESIDENTIAL
- ROOFING
- SIDING AND GUTTERS
- TUCKPOINTING / MASONRY
- WINDOW NEW AND REPLACEMENT

CONSTRUCTION ACTIVITIES THAT QUALIFY FOR EXPEDITED PERMIT PROCESSES

- ACCESSORY STRUCTURE - ADU

Permit Request Requirements and Example Diagram

If requesting tree removal not associated with a Building Permit, use the City's online Tree Preservation Permit Request Form to request a tree preservation permit. Either the property owner or the contractor may submit the form. The removal request should include information from a Certified Arborist demonstrating why the tree is at risk of failure and/or poses a significant risk.

The permit will be issued in the name provided on the form, and that person will be responsible and liable for any damage during the removal. Per City code, tree removal is allowed when there is evidence that the tree poses a significant risk to people and/or property. If the Tree Preservation Coordinator (or other City arborist) does not observe any decay, structural defects, or other conditions that would indicate the tree is at risk of failure, a variation from City code can be filed with the Human Services Committee.

If requesting tree removal associated with a Building Permit, the requirements listed in this Policy should be part of your Building Permit submittal package.

Required information:

- Owner contact information: name, address, phone number, email
- Contractor/Project representative contact information
- An explanation of the proposed work (i.e., sewer repair, building addition, etc.)
- Tree Protection Plan / Drawing
    - The plan does not need to be to scale and can be hand drawn for single removals
    - Engineering or professional plans are preferred for construction projects
    - Unless an emergency, must be submitted at the time of the application
- Inventory in chart form of proposed tree removals
    - Location and species (if known)
    - Size in DBH
    - Reason for removal

Next Steps

1. A City arborist responsible for issuing permits will review your application
2. If all of the required information has been included, the City arborist will perform a site visit
3. Within 14 days, the arborist will either issue a tree preservation permit or request further information
4. Certain permits may have expedited processing and issuing times

TREE PRESERVATION PERMITS – PRIVATE PROPERTY

PROTECTION REQUIREMENTS DURING CONSTRUCTION OR EXCAVATION

Tree Protection Requirements

1. If excavation or construction occurs within 25 feet of the trunk of a tree, tree protection fencing may be required.
2. The temporary fencing will be made of plastic, wood, or metal, and will be secured with metal posts set no farther apart than 3 feet.
3. Fencing must stay up during the entire duration of the project.
4. Construction materials and equipment cannot be stored within the critical root zone of any trees at any time.
5. If construction equipment will travel over the critical root zone of any tree, placing protective material on the ground may be required. Public Works Agency staff will provide direction and requirements.
6. If excavation will be within critical root zone of the tree, hand digging may be necessary to protect the most sensitive tree roots. The size of the tree, the location of the excavation, and the depth of the excavation are all factors that determine whether hand digging is appropriate.
7. In some cases, the best way to protect a tree may be to perform root pruning or provide treatment to trees prior to construction. These treatments can help to reduce the harm of digging and excavating around trees.
8. Review of Illinois Urban Manual CODE 990B TREE PROTECTION In Highly Urbanized Areas with Existing Green and Gray Infrastructure Conflicts is recommended.

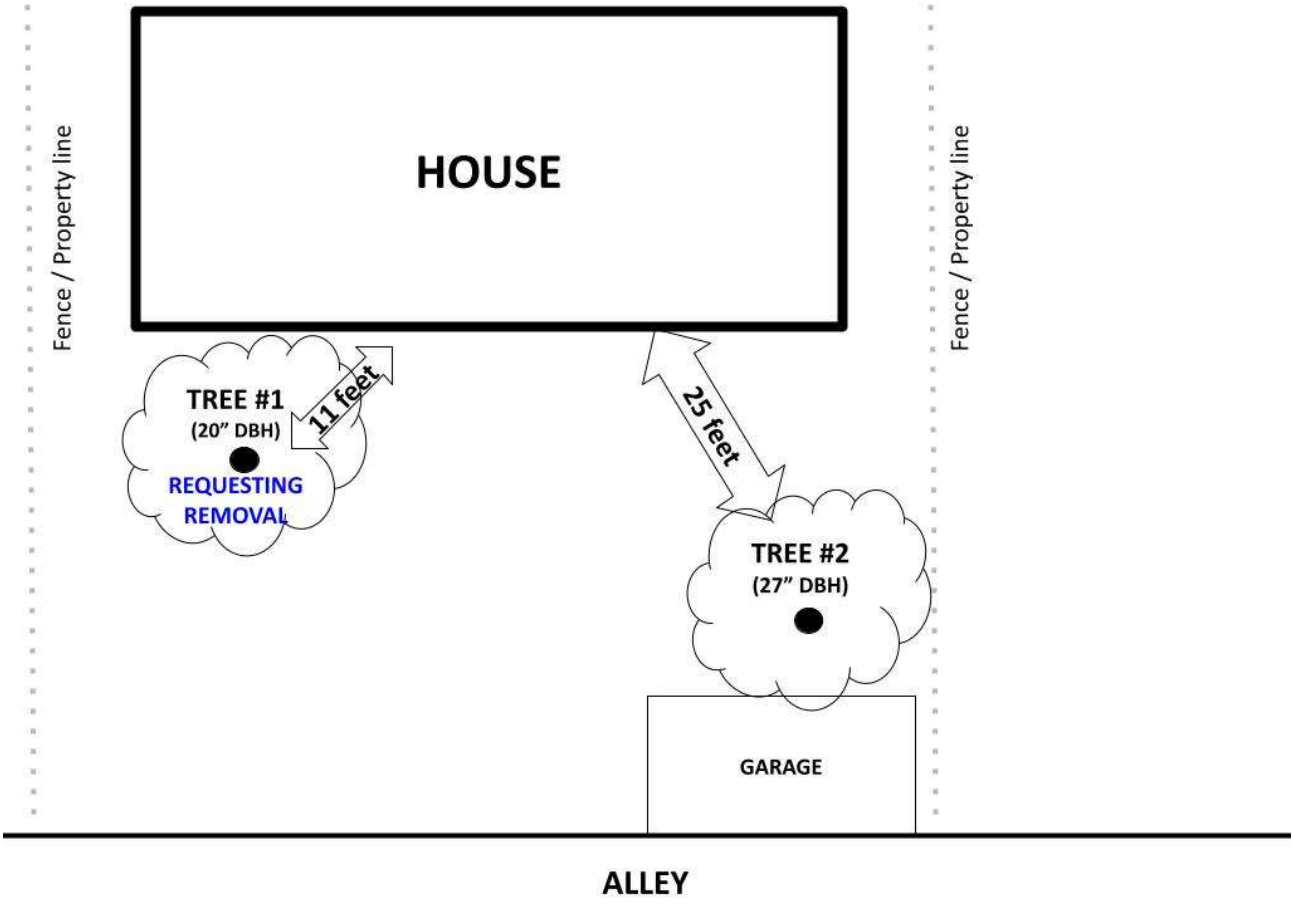
Tree Protection Plan Requirements

a. The plan does not need to be to scale and can be hand drawn.
    i. Engineering or professional plans are preferred for construction projects
    ii. must be submitted at the time of the application
b. Locations of subject property, including street address, legal description, existing and proposed buildings/structures, utilities, sidewalks, alley, neighboring structures as well as proposed work access areas, routs and material storage.
c. Locations of all public (2” DBH and greater) and private trees (6”DBH and greater) located on subject property, adjacent right-of-way, and on adjacent properties within 25 feet of tree trunk or have a critical root zone extending into the subject property.
d. Show distances between the construction of activity and any trees within 25 feet of trees.
e. Detailed specification for tree protection fencing, identification and clear delineation on site plan of construction activity area and tree protection area.
f. Detailed specification for maintenance and protection of Protected trees during construction activity, such as, but not limited to: installation/retaining of high

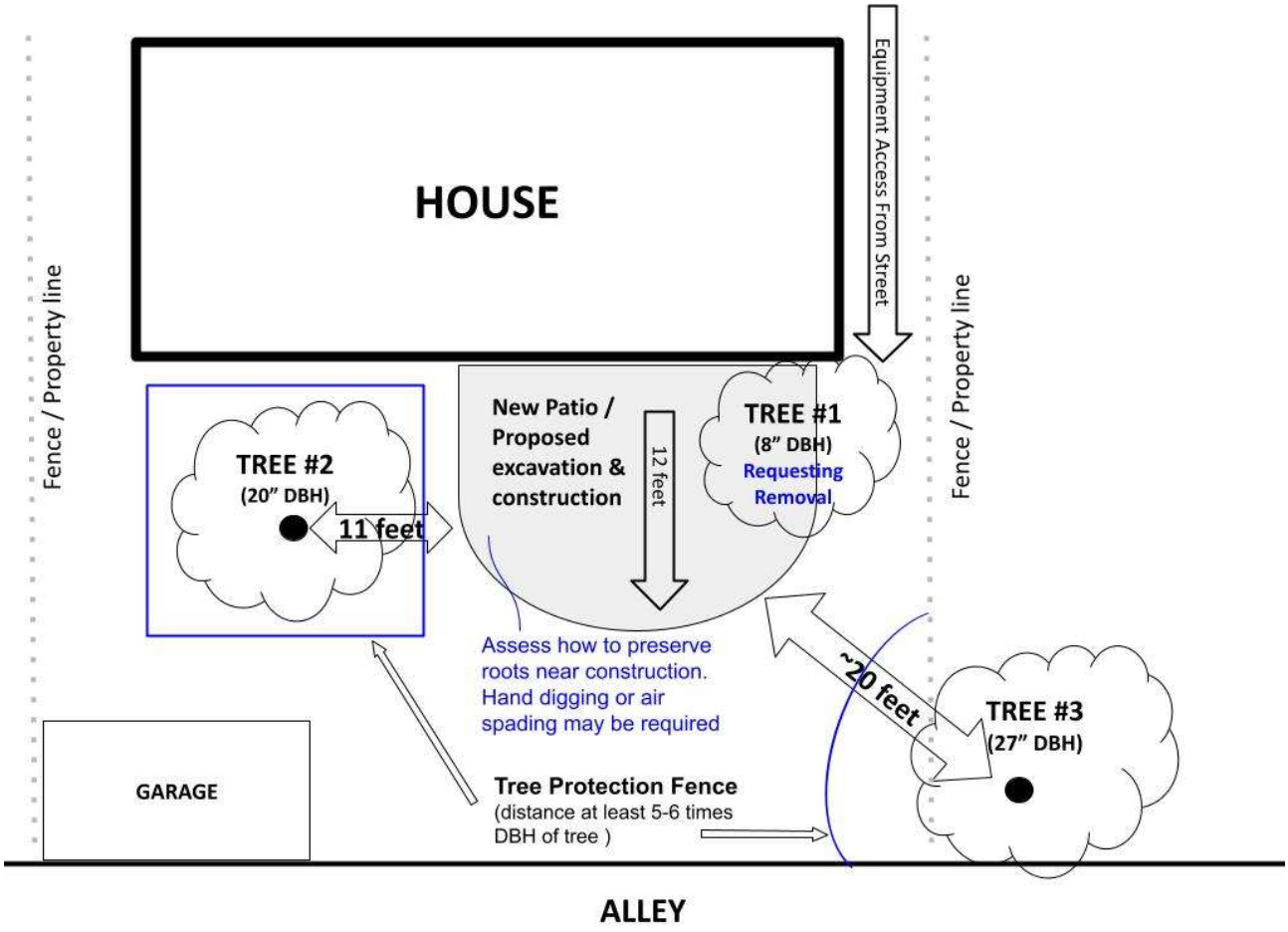
visibility fencing at critical root zones, canopy pruning, root pruning, auguring of utility lines, hand digging, and compaction prevention, i.e. plywood and mulch

g. Location of all proposed trees to be planted/replanted on or near subject property as part of the tree replacement plan.

Single Removal Example (not associated with construction):



Construction Tree Protection Plan Example:



CURRENT TREE REPLACEMENT AND MITIGATION RATES

Mitigation Formula

Per Evanston City code, trees must be replaced using the following formula:
(DBH of removed tree) x (coefficient) / (caliper inch of replacement trees)

Definitions:

- **DBH** = diameter of the tree at 4.5 feet from the ground
- **Coefficient** = replacement rate (from the table below)
- **Caliper inch** = the diameter of the seedling being planted (not the height)

Example: a 21" elm tree has been approved for removal
- DBH of removed tree = 21"
- Coefficient = 125%
- Caliper inch of replacement trees = 2"
- 21 x 1.25 / 2 = 13.125 trees

The mitigation requirement is 13 trees at a size of 2" caliper.

Replacement Rates for Removed Trees

Size Class	Public Trees	Group A	Group B	Group C	Group D
Less than 6"	**125%**	Encouraged	Encouraged	Encouraged	Encouraged
Greater or equal to 6" but less than 10"	**125%**	100%	100%	Encouraged	Encouraged
Greater or equal to 10" but less than 20"	**150%**	125%	125%	100%	Encouraged
Greater or equal to 20" but less than 40"	**175%**	150%	150%	100%	Encouraged
Greater or equal to 40"	**175%**	125%	125%	75%	Encouraged

Small Tree Species

The City recognizes that some understory tree species generally have smaller canopies and shorter maximum life spans. These are classified as "small tree species" and their mitigation rates will be one half (1/2) of larger species. These trees are marked by an asterisk (*) in the species groupings.

Fee in lieu of trees

When an applicant pays a mitigation fee instead of planting trees, the formula for replacement is:

(DBH of removed tree) x (coefficient) x (cost of planting one replacement tree) / (caliper inch of replacement trees)

Example: a 21" elm tree is approved for removal

- DBH of removed tree = 21"
- Coefficient = 125% (1.25)
- Caliper inch of replacement trees = 2"
- Cost of planting one replacement tree = $275 (2026)
- 21 x 1.25 x 275 / 2 = $3,609.37

The property owner would have to pay $3,609.37 in mitigation fees instead of planting trees.

2026 RATES

Cost of planting one replacement canopy tree	$275
Cost of planting one replacement on private property (reduced income)	$0

Classification of Reduced Income

Property owners with reduced income may be eligible for a waiver of their mitigation fees. Property owners who believe they may qualify are encouraged to contact City staff for further information.

Credit for On-site Planting Associated with Removal of Healthy Tree

Upon approval during the permit process, credit shall be given for tree replacement planting on-site when associated with removal of a healthy tree(s). The total credit will be subtracted from fee-in-lieu amount.

Credit for planting a shade tree	$550
Credit for planting an understory tree	$275

Calculating DBH of Multi-stemmed Trees

If an overstory (greater than 35 feet) tree forks within one foot of DBH, the measurement shall be recorded at the narrowest part of the main stem below the fork. If it forks below one foot of the DBH, then the aggregate of the stems' DBHs shall be used.

If an understory (less than 35 feet in height) tree has a multi-stemmed trunk system and has a maximum height of less than twenty feet, the DBH shall be the trunk having the largest DBH. The DBH of an understory multi-stemmed tree with a maximum height greater than twenty feet shall be calculated by taking the square root of the sum of all squared trunk stems' DBHs or $D_{MS} = \sqrt{(D^2_1 + D^2_2 + D^2_3 \ldots)}$.

FEES, PENALTIES, AND FINES FOR DAMAGES TO TREES AND OTHER VIOLATIONS

Private Tree Preservation or Removal Permit Fee	$50 -- $125
Branch / tree canopy damage (up to 3” diameter)	$300
Branch / tree canopy damage (3 - 5” diameter)	$500
Branch/ tree canopy damage (greater than 5” diameter)	$800
Trunk damage (up to 10% of circumference)	$200
Trunk damage (10% to 20% of circumference)	$400
Trunk damage (greater than 20% circumference)	$700
Any damage serious enough to result in tree removal	$1,500
Tree removal without a permit	$1,500
Activity without a tree preservation permit (when required)	$500
Root damage (up to 3” diameter)	$300
Root damage (greater than 3” diameter)	$600
Failure to put up tree preservation fencing	$100
Storing equipment or materials on the parkway	$200
Other damage	$100 – $1,500

Per City code:

- Each instance will count as a separate violation.
- Each day such violation occurs (as applicable) will count as a separate occurrence / violation.

TREE SPECIES GROUPINGS

This section includes the most common tree species in Evanson but is not exhaustive. It is the responsibility of the Public Works Director, or designee, to assign tree species to the appropriate group, including those not previously listed. Tree species are grouped according to the following factors:

- Native to Evanston
- Ecosystem value and contributions
- Habitat quality for other plants and animals
- Appropriate for planting in public spaces
- Tolerant of challenging urban conditions
- Invasive and/or aggressive propagators
- Current and desired species diversity

Group A: generally considered to have significantly valuable ecosystem and community contributions; often (but not exclusively) native; high quality habitat for other plants and animals; appropriate for public spaces; are neither invasive nor aggressive propagators

Group B: similar to Group A but often lack one or more characteristics. Example: Group B trees are often not suited for planting in public spaces.

Group C: often have only one or two positive characteristics

Group D: have no positive characteristics and may be invasive or an aggressive propagator; generally incompatible with a healthy urban forest canopy

GROUP A

CANOPY / OVERSTORY TREES	
Acer rubrum	Red maple
Acer saccharum	Sugar maple
Aesculus glabra	Ohio buckeye
Aesculus hippocastanum	Horsechestnut
Carya cordiformis	Bitternut hickory
Carya ovata	Shagbark hickory
Catalpa speciosa	Catalpa
Celtis occidentalis	Hackberry
Cladrastis lutea	American yellowwood
Corylus colurna	Turkish filbert
Fagus grandiflora	American beech
Fagus sylvatica	European beech
Gymnocladus dioicus	Kentucky coffeetree
Liquidambar styraciflua	Sweetgum
Liriodendron tulipifera	Tuliptree
Quercus alba	White oak
Quercus bicolor	Swamp white oak
Quercus ellipsoidalis	Hill's oak
Quercus imbricaria	Shingle oak
Quercus macrocarpa	Bur oak
Quercus muehlenbergii	Chinquapin oak
Quercus palustris	Pin oak
Quercus prinus	Chestnut oak
Quercus robur	English oak
Quercus rubra	Red oak
Taxodium distichum	Bald cypress
Tilia Americana	American basswood
Tilia x *euchlora* 'Redmond'	Redmond linden
Ulmus Americana	American elm
Ulmus rubra	Red/slippery elm
Ulmus sp.	Hybrid elm

UNDERSTORY / ORNAMENTAL TREES	
Acer griseum	Paperback maple
*Acer palmatum**	Japanese maple
Amelanchier spp.*	Serviceberry
Carpinus caroliniana	American hornbeam (blue beech)
*Cercis canadensis**	Redbud
*Chionanthus virginicus**	White fringe tree

*Cornus alternafolia**	Pagoda dogwood
Cornus kousa	Kousa dogwood
Cornus mas	Cornelian cherry dogwood
*Cornus florida**	Flowering dogwood
Crataegus grus-galli	Cockspur hawthorn
Ostrya virginiana	American hop hornbeam (ironwood)

*small tree species

EVERGREEN TREES	

GROUP B

CANOPY / OVERSTORY TREES	
Acer saccharinum	Silver maple
Betula nigra	River birch
Gleditsia triacanthos f. *inermis*	Thornless honey locust
Juglans nigra	Black walnut
Metasequoia glyptostroboides	Dawn redwood
Platanus x acerifolia	London planetree
Platanus occidentalis	Sycamore
Populas tremuloides	Quaking aspen
Populus deltoides	Cottonwood (male)
Populus deltoides	Cottonwood (female)
Sophora japonica	Japanese pagodatree
Tilia cordata	Littleleaf linden
Ulmus parvifolia	Chinese elm

UNDERSTORY / ORNAMENTAL TREES	
*Aesculus parviflora**	Bottlebrush buckeye
Aesculus pavia	Red buckeye
Alnus glutinosa	European alder
Betula platyphlla	Whitespire birch
Carpinus betulus	European hornbeam
Crataegus phaenopyrum	Washington hawthorn
Magnolia x *soulangiana*	Saucer magnolia
Malus spp.	Crabapple
Parrotia persica	Persian parrotia
*Prunus americana**	American plum
*Prunus padus**	European bird cherry
*Salix discolor**	Pussy willow

*small tree species

EVERGREEN TREES	
Abies concolor	White fir (concolor fir)
Juniperus virginiana	Eastern red cedar
Picea abies	Norway spruce
Picea glauca	White spruce
Picea pungens	Colorado spruce
Pinus strobus	White Pine
Pseudotsuga menziesii	Douglas fir
Thuja occidentalis (straight species)	Northern white-cedar/arborvitae
Tsuga canadensis	Eastern hemlock

GROUP C

CANOPY / OVERSTORY TREES	
Acer negundo	Boxelder maple
Acer platanoides	Norway maple
Cercidiphyllum japonicum	Katsura tree
Fraxinus americana	White ash
Fraxinus Pennsylvanica	Green ash
Fraxinus quadrangulata	Blue ash
Gingko biloba	Ginkgo (male)
Phellodendron amurense	Amur corktree
Prunus serotina	Black cherry
Robinia pseudoacacia	Black locust
Salix alba	White willow
Salix nigra	Black willow
Salix niobe	Weeping willow
Ulmus pumila	Siberian elm
Ulmus thomasii	Rock elm

UNDERSTORY / ORNAMENTAL TREES	
Betula papyrifera	Paper birch
Crataegus laevigata	English hawthorn
Crataegus mollis	Downy hawthorn
*Prunus virginiana**	Common chokecherry
Sorbus americana	American mountain ash
*Syringa reticulata**	Japanese tree lilac
Zelkova serrata	Zelkova

*small tree species

EVERGREEN TREES	
Pinus nigra	Austrian pine
Pinus resinosa	Red pine
Pinus sylvestris	Scotch pine

GROUP D

Acer ginnala	Amur maple
Ailanthus altissima	Tree of heaven
Elaeagnus angustifolia	Russian olive
Morus spp.	Mulberry spp.
Populus alba	White poplar
Populus nigra 'Italica'	Lombardy/Black poplar
Pyrus calleryana	Callery pear
Rhamnus cathartica	Buckthorn

Exempt Species

Species that do not require a tree removal permit due to their ecosystem value and contributions.

Thuja occidentalis cultivars	Northern white-cedar/arborvitae
Taxus spp.	Yew